

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine**

Hearing Date and Time: September 24, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name Case Number	Tentative
1.	<i>Omega Accounting Solutions, Inc. vs. Bonanno Investment Enterprises, Inc.</i> 2026-01542344	Before the court is the hearing on the amended petition to confirm arbitration award filed by petitioner Omega Accounting Solutions, Inc. (Petitioner). As more fully set forth below, the amended petition is DENIED for lack of proper notice and service. The court denied Petitioner's original petition to confirm arbitration award without prejudice due to Petitioner's failure to properly serve Respondent in accordance with Code of Civil Procedure section 1290.4 and Petitioner's failure to set forth the date when the arbitration award was served upon Petitioner. (ROA 18.) Specifically, Petitioner failed to serve the petition in the same manner as summons and failed to identify the date on which the arbitration award was served on Petitioner so the court could determine the timeliness of the petition. Petitioner therefore filed the amended petition in an attempt to correct these deficiencies. The amended petition alleges a date on which the arbitration award alleged was served on Petitioner, but Petitioner again has failed to properly serve the amended petition or notice of this hearing. The proof of service attached to the amended petition shows the amended petition again was served by mail on

		the Respondent's registered agent – not in the same manner as service of a summons as required by Code of Civil Procedure section 1290.4. Indeed, neither the original nor amended petition has been served in an appropriate manner. Furthermore, there is no proof of service showing the notice of hearing was served at all. Instead, the proof of service attached to the notice of hearing is the same one attached to the amended petition, i.e., showing the amended petition was served by mail. There is no proof showing notice was served at all. Proof of service must be served at least five court days before the hearing. The court also notes the amended petition appears to set forth the date upon which Petitioner served the award on Respondent, not the date upon which Petitioner was served with the arbitration award by the arbitrator. (ROA 21 at ¶ 9; ROA 15.) The date upon which Petitioner was served is relevant in determining compliance with Code of Civil Procedure section 1288.4 which states no petition may be served and filed "until at least 10 days after service of the signed copy of the award upon the petitioner." The amended petition is DENIED. Petitioner has been given multiple opportunities to comply with the application service and notice requirements, but has repeatedly failed to do so. Counsel for Petitioner is ordered to give notice of this ruling.
2.	<i>Petition of Greenberg</i> <i>2026-01559277</i>	Before the court is the continued hearing on the petition to compel inspection of corporate records filed by petitioner David Greenberg (Petitioner). As more fully set forth below, the petition is DENIED WITHOUT PREJUDICE for lack of proof service. The court first heard the petition on July 9, 2026. At that time, the court continued the hearing to the current date due to the lack of service. Specifically, the court ruled as follows: "The court notes the case file reflects that Petitioner is self-represented. [Attorney Steven] Napoles represents he recently substituted in.

	The court notes there is no filed substitution of attorney. Mr. Napoles informs he will submit one forthwith. The court confirms the tentative ruling as the order of the court as follows: Before the court is the petition to compel inspection of corporate records filed by petitioner David Greenberg (Petitioner). As set forth more fully below, the hearing is CONTINUED TO THURSDAY, SEPTEMBER 24, 2026, AT 2:00 P.M., IN DEPARTMENT C23. A stockholder's right to inspect the corporate books may be enforced by a writ of mandate. (<i>Webster v. Barlett Estate Co.</i> (1917) 35 Cal.App. 283, 285; see also <i>Most v. First Nat. Bank of San Diego</i> (1966) 246 Cal.App.2d 425; <i>Tritek Telecom, Inc. v. Superior Court</i> (2009) 169 Cal.App.4th 1385.) A petition for writ of mandate must be served on respondent (and real parties in interest, if any) in the manner required for service of a summons and complaint, i.e., pursuant to Code of Civil Procedure section 415.10 et. seq. (<i>Board of Supervisors v. Superior Court</i> (1994) 23 Cal.App.4th 830, 839.) Here, Petitioner has not filed any proof of service showing timely and properly service of the petition and notice of hearing on respondent Plastoker, Inc. (Respondent). Based on the foregoing, the hearing on the petition is CONTINUED as stated above. Petitioner is ordered to timely and properly serve Respondent and to file proof of such service at least five court days before the continued hearing date. Petitioner is ordered to give notice of this ruling." Despite his representations at the last hearing, Attorney Napoles has not filed a substitution of attorney naming himself as counsel of record. Moreover, Petitioner has not filed any notice of the court's prior ruling in this matter as ordered by the court. As such, there is no notice in the court's file showing notice of today's hearing. On August 28, 2026, Petitioner did file a proof of substitute service. (ROA 22.) Service, however, remains defective. Substitute service on an entity is effectuated by leaving a copy of the summons and complaint in the office of the person authorized to be served on behalf of the entity during usual business hours with the person "apparently in charge thereof" and by thereafter mailing a copy of the summons and complaint by first-class mail to such person
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		at the place where the copies were left. Service is deemed complete on the 10th day after the mailing. (Code Civ. Proc., § 415.20, subd. (a).) Here, the proof of service shows, on August 28, 2026, at 7:10 a.m., the petition and a notice of continued hearing (as noted above, no such document has been filed with the court) were sub-served on "Jason Greenberg" at 12 Globe Lane, Mission Viejo CA 92694 on co-occupant "Mike 'Doe'." This appears to be a residential address and not a business address, and Jason Greenberg's relation to Respondent is not identified. There is no mention of Respondent Plastoker, Inc. anywhere in the proof of service. Furthermore, there is no proof the summons and complaint were thereafter mailed to Respondent. As such, there is no proof of proper service. Petitioner has been given multiple opportunities to effectuate proper service, but has failed to do so. Accordingly, the petition is DENIED WITHOUT PREJUDICE. Petitioner is ordered to give notice of this ruling.
3.	<i>The City of Dana Point vs. Paul Fredric Meyers, Trustee of the Meyers Family Trust</i> <i>2022-01301502</i>	Before the court is the motion of the court-appointed receiver Mark S. Adams, Esq. at California Receivership Group, Inc. (Receiver) for order distributing remaining funds in the receivership, discharging the receiver, and exonerating the receiver's surety bond. Receiver states there is a total of \$112,275.37 remaining in the receivership estate following the sale of the real property at issue in this case. It appears all Receiver's bills and costs already have been paid from the proceeds of the sale and Receiver seeks no additional payment of any fees or costs related to this action. The court finds no objections were made to any monthly accounting or payments related to the receivership. With the motion, Receiver only requests distribution of the remaining \$112,275.37 to attorneys for Receiver, discharge of Receiver, and exoneration of Receiver's bond. As there currently are no other claims on record for the \$112,275.37, the court orders the \$112,275.37 to be paid to attorneys Ervin Cohen & Jessup LLP, for their bills related to representing Receiver. Once the court receives notification the funds have been paid and nothing remains in the receivership account, the court will discharge the receiver and order Receiver's \$10,000 surety (ROA #13) to be exonerated as there will

		no longer be any liabilities in this matter. (Civ. Proc. Code § 567(b); Cal. Rules Ct., rule 3.1184(a)(3); <i>Hanno v. Superior Ct. of Santa Barbara Cnty.</i> (1939) 30 Cal.App.2d 639, 641; <i>City of Chula Vista v. Gutierrez</i> (2012) 207 Cal.App.4th 681, 685–86.) Receiver is ordered to submit a proposed order consistent with this ruling and to give notice to all parties entitled to notice.
4.	<i>Cho vs. Twiso Bakery Inc.</i> 2020-01169632	Before the court is the motion to enforce settlement agreement and enter judgment, etc., filed on July 16, 2026, by plaintiff Euna Cho (Plaintiff), seeking entry of judgment in the amount of \$24,500 against defendants Bottega Trading, Inc. and Hyo Sang Lee (collectively, Bottega Defendants). As more fully set forth below, the motion is GRANTED IN PART and DENIED IN PART. The motion seeks to enforce a settlement agreement between Plaintiff and the Bottega Defendants pursuant to Code of Civil Procedure section 664.6 based on their Settlement Agreement (Agreement) as reflected in the Park Declaration at Exhibit A. The evidence presented demonstrates notice of the default on the promised settlement payments was given, but the Bottega Defendants failed to timely cure, leaving a balance due in the sum of \$24,500. (Park Decl., ¶¶ 2-27.) Judgment shall thus now be entered pursuant to Code of Civil Procedure section 664.6, subdivision (a), against the Bottega Defendants, jointly and severally, for the remaining sum owed under the terms of that Agreement in the amount of \$24,500. The request for attorney fees and costs, however, is DENIED. Plaintiff has not shown that the Agreement provided for recovery of fees or costs incurred in the action or in efforts to enforce the Agreement. To the contrary, the Agreement states in section 7 that the parties were to bear their own fees as incurred in the action, and in sections 5 and 8, Plaintiff released any and all other claims. Plaintiff is to submit a proposed Judgment which comports with the foregoing, and is to give notice of this ruling.
5.	<i>Buena Noche, LLC vs. One Health Services, LLC</i> 2026-01566837	Before the court is the motion of defendant and judgment debtor Ryan Quimby-Johnson, aka Ryan Quimby (Debtor) to vacate entry of sister-state judgment, or in the alternative, to stay enforcement of judgment pending resolution of Texas bill of review proceeding. As more fully set forth below, the court GRANTS the request for a stay

	and CONTINUES the request to vacate pending the outcome of the bill of review in Texas. By this motion, Debtor challenges the default judgment plaintiffs and judgment creditors Buena Noche, LLC and Morgan Park, Ltd. (collectively, Creditors) obtained against Debtor in Texas state court and have now entered as a sister-state judgment here in California. Debtor contends he was never validly served in the Texas case, and he has filed a bill of review to challenge the default judgment in the Texas state courts. Creditors object they were never served with the motion and therefore the motion should be denied outright. Debtor has not filed any proof of service showing he properly served the motion on Creditors and has not timely filed any reply to show service of the motion was properly made. As Creditors point out, although Code of Civil Procedure section 1710.40 authorizes a judgment debtor to bring a motion to vacate a sister-state judgment, section 1710.040, subdivision (b), requires such motion to be made within 30 days of service of notice of entry of the sister-state judgment, including written notice to the judgment creditor. As noted, although Debtor timely filed this motion, he did not provide any evidence he timely served it, or served it at all for that matter. The section 1710.40, subdivision (b), 30-day limitations period, however, does not apply when the motion to vacate the judgment is based on defective subject matter or personal jurisdiction in the underlying action. "Judgments or orders by a court that lacks jurisdiction in this fundamental sense are void. Objection bases thereon may be raised at any time." (<i>Airlines Reporting Corp. v. Renda</i> (2009) 177 Cal.App.4th 14, 19-20; <i>Conseco Marketing, LLC v. IFA & Ins. Services, Inc.</i> (2013) 221 Cal.App.4th 831, 843.) As noted above, Debtor's challenge is based on the claim he was never served and therefore the Texas state court never has personal jurisdiction over him, and therefore the service defect on this motion is not necessarily fatal to the motion. The court also notes, despite the lack of any service of the motion, Creditors have responded on the merits of the motion and have not shown any prejudice. It also is important to note Debtor's alternative request for a stay under Code of Civil Procedure section 1710.50 is not subject to the same 30-day time limit, or any statutory time limit at all. Section 1710.50, subdivision (a) states
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		the court “shall” grant a stay of enforcement when, among other things, an appeal is pending in the state court that entered the judgment or any other circumstances exist where the interests of justice require a stay of enforcement. Here, Debtor states he has filed a bill of review in Texas state court to challenge the default judgment on which the sister-state judgment is based. As more fully stated below, Creditors have objected to the copies of the bill of review Debtor provides, but Creditors have not disputed the existence of Debtor’s challenge in Texas state court. Based on the foregoing, the court GRANTS the request to stay enforcement of the sister-state judgment in this court pending resolution of the challenge to the underlying judgment in the Texas state courts. Creditors request the court condition the stay on requiring Debtor to post an undertaking. Code of Civil Procedure section 1710.50, subdivision (c), grants the court the discretion to place conditions on the imposition of a stay, including requiring an undertaking. Creditors, however, have not explained or made any showing as to why an undertaking is necessary or appropriate. Accordingly, the court declines to require an undertaking at this time. Based on the foregoing, the court also CONTINUES the request to vacate the sister state judgment and SETS A STATUS CONFERENCE regarding the proceedings in the Texas state courts for <u>Monday, December 14, 2026, at 9:30 a.m.</u> The request to vacate also will be on calendar on December 14, but only for scheduling purposes. Once the Texas proceedings are resolved, the court will determine how to proceed with the request to vacate—e.g., whether to set it for a hearing on the merits or order it off calendar. <u>Creditors’ Objections:</u> As noted, Creditors filed objections to certain evidence Debtor submitted. Those objections are OVERRULED as to object nos. 1-3, 6, and 9, and SUSTAINED as to objection nos. 4, 5, 7, and 8. Debtor is ordered to give notice of this ruling.
6.	<i>Genesis Capital, LLC v. Scottsdale Lei, LLC</i> 2025-01473320	CONTINUED to October 15, 2026, as stated in the September 17, 2026 Minute Order.
7.	<i>Santos vs. Crenshaw</i>	Before the court is the renewed motion to amend judgment pursuant to Code of Civil Procedure section 187 to add

	Manufacturing Inc. 2025-01488879	Waleed Mansour as additional judgment debtor filed by plaintiff Marivel Santos (Santos) on June 25, 2026. As more fully set forth below, the motion is CONTINUED TO THURSDAY, JANUARY 7, 2027, AT 2:00 P.M., IN DEPARTMENT C23. The evidence presented demonstrates Santos has requested a determination on this issue from the Workers Compensation Appeals Board ("WCAB"), with an evidentiary hearing date now imminent. (ROA 49, McNulty Decl., ¶ 5; ROA 76, McNulty Reply Decl., ¶¶ 14-15.) The judgment at issue here is based on the underlying WCAB Award, which was entered as a judgment in this court pursuant to Labor Code section 5806. It is the WCAB Award that gave rise to these proceedings and it is the WCAB that is in a better position to address the extent to which the Award was or was not functionally equivalent to a default judgment and the underlying facts relating to the relationship between Waleed Mansour, Crenshaw Manufacturing, Inc., and any allegedly related entities, all of which is disputed here. Accordingly, the court will CONTINUED the hearing on this motion as stated above to allow the WCAB to address the similar request presented there. Counsel for Santos is to give notice of this ruling.
8.	Domaol v. Caring Moments, Inc. 2019-01104318	CONTINUED to October 15, 2026, as stated in the September 17, 2026 Minute Order.
9.	In Re: 416 North Lee Avenue, Fullerton, CA 92833 2026-01576391	Before the court is the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale that petitioner ZBS Law, LLP (Petitioner) filed on May 29, 2026. The court has received no claims to the surplus. The petition is filed under Civil Code section 2924j following a trustee's sale pursuant to a deed of trust that Petitioner conducted on September 13, 2021, regarding the property located at 416 North Lee Avenue, Fullerton, California 92833 (Property). After paying off the trust deed, all senior liens, and undisputed claims, Petitioner seeks to deposit the surplus funds of \$158,630.24 with the court and be discharged from responsibility for the distribution of those funds because, after due diligence, Petitioner is unable to determine the priority of the written claims it received. Although the court finds the petition substantially complies with the notice and other requirements of section 2924j,

	before granting the petition the court would like to hear from Petitioner regarding any efforts made to locate any of the numerous individuals to whom notice was sent at the Property after the sale had been completed. After hearing from Petitioner the court will likely find Petitioner should be allowed to deposit the surplus funds with the court and be discharged. Accordingly, unless the court hears something to the contrary at the hearing, the petition will be GRANTED, and Petitioner will be ordered to deposit all surplus fund relating to the trustee's sale for the Property with the clerk of the court forthwith. Upon deposit of the funds with the clerk of the court, Petitioner shall be discharged of further responsibility for the distribution of the sale proceeds as provided in Civil Code section 2924j(c). Upon deposit with the clerk of the court, the surplus funds shall stay on deposit with the clerk until such time as a claim to the funds is duly asserted, or until the funds escheat to the court. (Gov. Code, § 68084.1(a) ["Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court, or that a superior court is holding in trust for the lawful owner, in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court if, after published notice pursuant to this section, the money is not claimed or no verified complaint is filed and served"]; Code Civ. Proc. § 1502(a)(3) ["This chapter does not apply to any of the following: [¶] . . . [¶] (3) Any property in the official custody of a court if the property may be transferred to the Trial Court Operations Fund under Section 68084.1 of the Government Code"]; Code Civ. Proc., § 1519 ["All tangible personal property located in this state, and, subject to Section 1510, all intangible personal property, held for the owner by any government or governmental subdivision or agency, that has remained unclaimed by the owner for more than three years escheats to this state"].) The court hereby sets a hearing to consider any timely claims on the surplus for <u>Thursday, January 7, 2027, at 2:00 p.m., in Department C23.</u> The clerk of the court is directed to give notice of this hearing by first class mail to all claimants identified in attachment 8 to the petition, and all parties who have appeared in this case.
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		Any claims to the surplus funds must be filed with the court and served on the foregoing claimants at least 15 days before the foregoing hearing date. Petitioner's counsel is ordered to give notice of this ruling.
10.	<i>In re: 206-208 W. Electric Ave., La Habra, CA 90631</i> <i>2026-01574411</i>	Before the court is the continued hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 206-208 W. Electric Avenue, La Habra, California 90631 and owned by Lucy Seh, trustee of the Peter Seh Living Trust 2001 dated September 13, 2001 (Trust), and Jonathan Seh as joint tenants. As more fully set forth below, the court DECLINES to issue an order for sale at this time without prejudice to a future application that complies with all timing and other statutory requirements. The original order to show cause was entered on June 4, 2026 based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). In issuing the original order to show cause, the court found Creditors' application satisfied the statutory requirements and therefore the court entered the original order to show cause. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 17.) The court conducted the hearing on the original order to show cause on July 16, 2026, and continued the hearing to today's date based on various deficiencies the court found. Specifically, as set forth in its minute order, the court ruled as follows: "The tentative ruling, as modified, now becomes the order of the court as follows: "Before the court is the hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 206-208 W. Electric Avenue, La Habra, California 90631, and owned by judgment debtors the Peter Seh Living Trust 2001 dated September 13, 2001, and Jonathan She (collectively, Debtors). The order to show cause was entered on June 4, 2026, based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). As more fully set forth below, the hearing on the order to show cause is CONTINUED TO THURSDAY, SEPTEMBER 24, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Creditors to establish proper service of all necessary documents in accordance with Code of Civil Procedure section 704.770.

	"Any opposition shall be filed and served by 09/04/2026. Any reply shall be filed and served by 09/16/2026. "The court previously found Creditors' application satisfied the statutory requirements and therefore the court entered the order to show cause and instructed Creditors to give notice. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 17.) The court specifically stated in the order that all parties must be served as required by Code of Civil Procedure section 704.770. "Here, Creditors fail to establish proper service in accordance with Code of Civil Procedure section 704.770. That code section required Creditors to serve (1) a copy of the order to show cause, (2) a copy of the application of the judgment creditor for the order to show cause, and (3) a copy of the notice of the hearing in the form prescribed by the Judicial Council. "Those documents must be served on the Debtors either personally or by mail. Those same documents also must be personally served on any occupant of the dwelling or, if there is no occupant present at the time service is attempted, the documents must be posted in a conspicuous place at the dwelling. "Creditors filed proofs of service showing they effectuated substitute service on the occupants of the property by serving the application for order of sale and the order to show cause. The proofs of service, however, fail to show Creditors served the notice of the hearing in the form prescribed by the Judicial Council. "As for service on Debtors, Creditors filed a document entitled 'Proof of Service by Mailing of Order to Show Cause.' The documents attached, however, are receipts for mailing; they are not proofs of service. Those receipts do not comply with the requirements of the Code of Civil Procedure for proofs of service, and they do not identify what documents were served (as noted above, three documents had to be served). Moreover, they do not show the capacity in which any party is served. One of the Debtors is a trust, and therefore must be served by service on the trustee in that capacity. "The court further notes, on July 9, 2026, Creditors filed a supplement to their application for an order to show cause to provide the court with a copy of a relevant quitclaim deed and the 'Notice to Judgment Creditor Request for Application for Order for Sale of Dwelling (CCP 704.750).' There, however, is no proof of service showing this
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	supplement was served on anyone. This document supplements the application for an order to show cause and therefore must be served just like the application. "Based on the foregoing service deficiencies, the hearing on the order to show cause is CONTINUED as stated above for Creditors to make proper service as required by Code of Civil Procedure section 704.770 and to give notice of this ruling. All proofs of service must be filed at least 10 days before the continued hearing date. The court finds good cause to conduct the hearing on the order to show cause beyond the 45-day period established by Code of Civil Procedure section 704.770." Following the July 16, 2026 hearing, Creditors submitted and the court issued a new order to show cause on July 21, 2026. (ROA 31.) Creditors now have filed new proofs of service showing compliance with statutory notice requirements. (ROA 33, 35, 37, 38, 40 41.) Although the proofs of service all list a notice of hearing on right to homestead exemption as one of the documents that was served, Creditors have not filed a copy of that document with the court and therefore the court cannot confirm what notice was actually served. In connection with the order to show cause the court must determine whether the dwelling is a homestead entitled to the homestead exemption, the amount of any homestead exemption, the dwelling's fair market value, the existence of any liens senior to Creditors' judgment lien, the amount of any such liens, and whether the sale of the dwelling is likely to produce a bid high enough to satisfy any part of Creditors' judgment. (<i>Meyer v. Sheh</i> (2022) 74 Cal.App.5th 830, 838-839.) If recorder or tax assessor records do not show a current homeowner or disabled veteran's exemption, debtor has the burden of proof as to whether the dwelling is a homestead; otherwise, the burden is on the creditor to show it is not a homestead. (Code Civ. Proc. § 704.780, subd. (a)(1); <i>In re Morse</i> (1995) 11 Cal.4th 184, 202.) Creditors contend no homestead declaration was ever recorded at the Orange County Tax Assessor, nor has a homeowner's exemption or disabled veteran's exemption been filed or recorded for the property. Despite the court setting September 4, 2026, as the deadline for any opposition to the order to show cause to be filed, no opposition was filed in this case. As a result, judgment
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	debtors have failed to meet their burden to show the dwelling is, in fact, a homestead. (Code Civ. Proc. § 704.780, subd. (a)(1); <i>In re Morse</i> (1995) 11 Cal.4th 184, 202.) Despite the lack of any opposition being filed in this case, Creditors filed a reply stating an opposition was served on September 4, 2026. Creditors assert the opposition argues (1) the order to show cause does not pertain to judgment Jonathan Seh, and (2) the judgment is unenforceable and void as against the Trust because a trust is not a legal entity. Without the opposition being filed, the court cannot confirm what the opposition allegedly argues. Nonetheless, the court cannot ignore the related action, case no. 2026-01573506, which also is on calendar today and is a separate proceeding in which Creditors seek an order for sale of dwelling relating to a different piece of property to enforce the same judgment. An opposition was filed in that case arguing the judgment cannot be enforced against the Trust. First, the order to show cause is directed to Jonathan Seh. Indeed, it is specifically addressed to Jonathan Seh and Lucy Seh, Trustee, or any successor trust of the Peter Seh Living Trust 2001. As noted above, title to the property is held by Lucy Seh, trustee of the Peter Seh Living Trust 2001 dated September 13, 2001 (Trust), and Jonathan Seh as joint tenants. As such, any order for sale must be directed to both owners. It must be noted, however, Creditors have not presented any authority showing or otherwise addressed how or whether the court may order a property sold to reach the interest of less than all owners. For example, as set forth below, the court concludes the judgment in its current form cannot be enforced against the Trust, which means the interest in the property held by the Trust cannot be sold pursuant to the current order. Creditors have not shown the court may nonetheless order Jonathan Seh's interest sold and if so, on what terms. For example, does the court need to value all interests and liens on the property to ensure there is enough equity to maintain the Trust's interest if the property is sold to reach Jonathan Seh's interest. Second, as the opposition allegedly points out, the judgment is unenforceable as against the Trust. A trust is not an entity capable of suing or being sued, does not itself hold title to any property, and cannot be a judgment debtor under the Enforcement of Judgment laws. (<i>Portico</i>
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		<i>Management Group, LLC v. Harrison</i> (2011) 202 Cal.App.4th 464, 474.) Rather, title to property is held by the trustee in the trustee's representative capacity of the trust. (<i>Id.</i> at p. 473; see also ROA 33.) Given a trust lacks independent existence, a judgment entered against a trust is void and is subject to collateral attack at any time. (<i>Jo Redland Trust, U.A.D. 4-06-05 v. CIT Bank, N.A.</i> (2023) 92 Cal.App.5th 142, 157-158; <i>People v. American Contractors Indemnity Co.</i> (2004) 33 Cal.4th 653, 660.) Creditors acknowledge the judgment incorrectly identifies the defendant as the Trust itself, rather than naming the trustee of the Trust. The judgment in its current form therefore is void and unenforceable as against the Trust. Creditors' waiver arguments are not sufficient to overcome <i>Portico Management Group, LLC</i> and the governing trust law. For the foregoing reasons, the court DECLINES to issue an order for sale of the dwelling at this time. This ruling is without prejudice to a future application that complies with all timing and other statutory requirements. The ruling also expresses no opinion as to whether the judgment may be amended, corrected, or otherwise changed to reflect it is against the trustee(s) of the Trust. That is for the court that entered the judgment to determine. The court notes Creditors make a number of representations about the Trust, whether it is revocable or irrevocable, who the beneficiary is, etc., but Creditors do not present any evidence to support any other those assertions. Creditors' request for judicial notice is GRANTED. Creditors' counsel is ordered to give notice of this ruling.
11.	<i>Kirk vs She</i> <i>2026-01573506</i>	Before the court is the continued hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 24664 Las Patranas, Yorba Linda, California 92887 and owned as of record by Peter Seh, as trustee of the Peter Seh Living Trust 2001 dated September 13, 2001. As more fully set forth below, the court DECLINES to issue an order for sale at this time without prejudice to a future application that complies with all timing and other statutory requirements. The original order to show cause was entered on June 2, 2026, based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). The court previously found Creditors' application satisfied the statutory requirements and

	therefore the court issued the original the order to show cause. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 13.) The court conducted the hearing on the original order to show cause on July 16, 2026, and continued the hearing to today's date based on various deficiencies the court found. Specifically, as set forth in its minute order, the court ruled as follows: "The tentative ruling, as modified, now becomes the order of the court as follows: "Before the court is the hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 24664 Las Patranas, Yorba Linda, California 92887, and owned by judgment debtor the Peter Seh Living Trust 2001, dated September 13, 2001 (Debtor). The order to show cause was entered on June 4, 2026, based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). As more fully set forth below, the hearing on the order to show cause is CONTINUED TO THURSDAY, SEPTEMBER 24, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Creditors to establish proper service of all necessary documents in accordance with Code of Civil Procedure section 704.770. "Any opposition shall be filed and served by 09/04/2026. Any reply shall be filed and served by 09/16/2026. "The court previously found Creditors' application satisfied the statutory requirements and therefore the court entered the order to show cause and instructed Creditors to give notice. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 17.) The court specifically stated in the order that all parties must be served as required by Code of Civil Procedure section 704.770. "Here, Creditors fail to establish proper service in accordance with Code of Civil Procedure section 704.770. That code section required Creditors to serve (1) a copy of the order to show cause, (2) a copy of the application of the judgment creditor for the order to show cause, and (3) a copy of the notice of the hearing in the form prescribed by the Judicial Council. "Those documents must be served on Debtor either personally or by mail. Those same documents also must be personally served on any occupant of the dwelling or, if
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	there is no occupant present at the time service is attempted, the documents must be posted in a conspicuous place at the dwelling. "Creditors filed a proof of service showing they posted copies of the application for order of sale and the order to show cause at the property. The proof of service, however, fails to show Creditors posted or otherwise served the notice of the hearing in the form prescribed by the Judicial Council. "As for service on Debtor, Creditors filed a document entitled 'Proof of Service by Mailing of Order to Show Cause.' The attached documents, however, are receipts for mailing; they are not proofs of service. Those receipts do not comply with the requirements of the Code of Civil Procedure for proofs of service and they do not identify what documents were served (as noted above, three documents had to be served). Moreover, they do not show the capacity in which the persons identified were served. The Debtor is a trust, and therefore must be served by service on the trustee in that capacity. "The court further notes, on July 9, 2026, Creditors filed a supplement to their application for an order to show cause to provide the court with a copy of a relevant quitclaim deed and the 'Notice to Judgment Creditor Request for Application for Order for Sale of Dwelling (CCP 704.750).' There, however, is no proof of service showing this supplement was served on anyone. This document supplements the application for an order to show cause and therefore must be served just like the application. "Based on the foregoing service deficiencies, the hearing on the order to show cause is CONTINUED as stated above for Creditors to make proper service as required by Code of Civil Procedure section 704.770 and to give notice of this ruling. All proofs of service must be filed at least 10 days before the continued hearing date. The court finds good cause to conduct the hearing on the order to show cause beyond the 45-day period established by Code of Civil Procedure section 704.770." Following the July 16, 2026 hearing, Creditors submitted and the court issued a new order to show cause on July 21, 2026. (ROA 42.) Proofs of service of the application, order to show cause, and notice of hearing have been filed showing service on Lucy Seh, as Trustee of the Peter Seh Living Trust 2001
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	Dated September 13, 2001 (Trust), and occupants of the property. (ROA 44, 46.) There, however, is no proof of service on judgment debtor Jonathan Seh, who Creditors contend is the beneficiary of the Trust. Moreover, although the proofs of service all list a notice of hearing on right to homestead exemption as one of the documents that was served, Creditors have not filed a copy of that document with the court and therefore the court cannot confirm what notice was actually served. In connection with the order to show cause the court must determine whether the dwelling is a homestead entitled to the homestead exemption, the amount of any homestead exemption, the dwelling's fair market value, the existence of any liens senior to Creditors' judgment lien, the amount of any such liens, and whether the sale of the dwelling is likely to produce a bid high enough to satisfy any part of Creditors' judgment. (<i>Meyer v. Sheh</i> (2022) 74 Cal.App.5th 830, 838-839.) If recorder or tax assessor records do not show a current homeowner or disabled veteran's exemption, debtor has the burden of proof as to whether the dwelling is a homestead; otherwise, the burden is on the creditor to show it is not a homestead. (Code Civ. Proc. § 704.780, subd. (a)(1); <i>In re Morse</i> (1995) 11 Cal.4th 184, 202.) Creditors present a quitclaim deed showing the property is owned by Peter Seh, as trustee of the Peter Seh Living Trust 2001 dated September 13, 2001. Creditors concede a current homeowner's exemption exists in the name of the Trust but contend the property is not a homestead because the property is an investment/rental property and has at least two tenants. Creditors, however, failed to produce any evidence the property is an investment/rental property and thus failed to meet their burden to show the subject property is not a homestead. Moreover, as the opposition points out, the judgment is unenforceable as against the Trust. A trust is not an entity capable of suing or being sued, does not itself hold title to any property, and cannot be a judgment debtor under the Enforcement of Judgment laws. (<i>Portico Management Group, LLC v. Harrison</i> (2011) 202 Cal.App.4th 464, 474.) Rather, title to property is held by the trustee in the trustee's representative capacity of the trust. (<i>Id.</i> at p. 473; see also ROA 33.) Given a trust lacks independent existence, a judgment entered against a trust is void and is subject to collateral attack at any time. (<i>Jo Redland Trust, U.A.D. 4-06-05 v. CIT Bank, N.A.</i> (2023) 92 Cal.App.5th 142, 157-158; <i>People v. American Contractors Indemnity</i>
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		Co. (2004) 33 Cal.4th 653, 660.) Creditors acknowledge the judgment incorrectly identifies the defendant as the Trust itself, rather than naming the trustee of the Trust. The judgment in its current form therefore is void and unenforceable as against the Trust. Creditors' waiver arguments are not sufficient to overcome <i>Portico Management Group, LLC</i> and the governing trust law. For the foregoing reasons, the court DECLINES to issue an order for sale of the dwelling at this time. This ruling is without prejudice to a future application that complies with all timing and other statutory requirements. The ruling also expresses no opinion as to whether the judgment may be amended, corrected, or otherwise changed to reflect it is against the trustee(s) of the Trust. That is for the court that entered the judgment to determine. The court notes Creditors make a number of representations about the Trust, whether it is revocable or irrevocable, who the beneficiary is, etc., but Creditors do not present any evidence to support any other those assertions. Creditors' request for judicial notice is GRANTED. Creditors' counsel is ordered to give notice of this ruling.
12.	American Family Connect Property and Casualty Insurance Company vs. Garcia 2026-01541403	Before the Court are the following three unopposed discovery motions filed by petitioner American Family Connect Property and Casualty Insurance Company (Petitioner) against respondent Karla Sophia Garcia (Garcia): (1) Motion to Compel Responses to Form Interrogatories, (2) Motion to Compel Responses to Special Interrogatories, (3) Motion to Deem Requests for Admissions admitted. All three motions are GRANTED, as set forth herein. The within matter arises from a claim for uninsured motorist benefits being made by Garcia against Petitioner. (Slack Decl. ¶ 3.) "[T]he uninsured motorist law grants the superior court the exclusive jurisdiction to hear discovery matters arising under uninsured motorist arbitrations." (<i>Miranda v. 21st Century Ins. Co.</i> (2004) 117 Cal.App.4th 913, 926; see also Ins. Code § 11580.2, subd. (f)(6).) Petitioner establishes, on July 7, 2025, it served Garcia with Form Interrogatories and Special Interrogatories. (Slack Decl. ¶ 4, Exh. B.) Petitioner also served Garcia with Requests for Admissions, set one, on October 29, 2025. (Slack Decl., ¶ 4, Exh. B.) Petitioner also establishes Garcia did not serve responses to the written discovery

		despite multiple requests. (Slack Decl., ¶¶ 5-7, ROA 28 & 29; ¶¶ 4-6 ROA 27.) Responses to interrogatories and requests for admission are due 30 days after service (plus appropriate time for method of service). (Code Civ. Proc., §§ 2030.260, 2033.250.) California Code of Civil Procedure §2030.290 provides as follows: “If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply: [¶] (a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). [¶] (b) The party propounding the interrogatories may move for an order compelling response to the interrogatories.” With respect to the Requests for Admission, a propounding party may ask the court for an order deeming the matters contained in the requests for admission admitted if the receiving party fails to respond to the requests for admission. (Code Civ. Proc., § 2033.280, subd. (b).) The court shall grant the order unless it finds that the party to whom the requests were directed has served responses in conformance with Code of Civil Procedure section 2033.220 before the hearing on the motion. (Code Civ. Proc., § 2033.280, subd. (c).) As a result of Garcia’s failure to respond to Petitioner’s first set of requests for admissions, Petitioner is entitled to an order deeming the admissions admitted. As a result of the failure to respond to the Petitioner’s form interrogatories and special interrogatories, Petitioner is entitled to an order compelling responses without objections. Accordingly, Garcia is ordered to provide responses without objection to Form Interrogatories, Set One, and Special Interrogatories, Set One, within 30 days of the date that notice of this ruling is served on Garcia. It is further ordered the requests for admission in Requests for Admissions, Set One, propounded to Garcia are deemed admitted. The Court further orders that Garcia pay reduced sanctions in the total amount of \$1,510, for all three motions, to Petitioner, through its attorney of record, within 30 days.
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		(Code Civ. Proc., §§ 2030.290, subd. (c), 2033.280, subd. (c).) Counsel for Petitioner is ordered to give notice of this ruling.
13.	<i>Petition of Liu</i> <i>2026-01555065</i>	Before the court is the verified petition to preserve evidence before filing action filed on behalf of petition Jeffrey Wayne Liu (Petitioner) by and through his attorney Jane Ho. As more fully set forth below, the petition is DENIED because it suffers from a variety of defects. Code of Civil Procedure section 2035.010, et seq. authorizes a party to file a petition seeking prelawsuit discovery for purposes of perpetuating testimony or preserving evidence. The procedure "shall not [be] employ[ed] . . . for purposes of either ascertaining the possible existence of a cause of action nor a defense to it, or of identifying those who might be made parties to an action not yet filed." (Code Civ. Proc., § 2035.010, subd. (b).) To obtain a court order authorizes prelawsuit discovery, the party must file a verified petition setting forth: "(1) The expectation that the petitioner or the petitioner's successor in interest will be a party to an action cognizable in a court of the State of California. [¶] (2) The present inability of the petitioner and, if applicable, the petitioner's successor in interest either to bring that action or to cause it to be brought. [¶] (3) The subject matter of the expected action and the petitioner's involvement. A copy of any written instrument the validity or construction of which may be called into question, or which is connected with the subject matter of the proposed discovery, shall be attached to the petition. [¶] (4) The particular discovery methods described in Section 2035.020 that the petitioner desires to employ. [¶] (5) The facts that the petitioner desires to establish by the proposed discovery. [¶] (6) The reasons for desiring to perpetuate or preserve these facts before an action has been filed. [¶] (7) The name or a description of those whom the petitioner expects to be adverse parties so far as known. [¶] (8) The name and address of those from whom the discovery is to be sought. [¶] (9) The substance of the information expected to be elicited from each of those from whom discovery is being sought." Code of Civil Procedure section 2035.040 requires the party to serve the petition and a notice of the hearing on the petition "on each natural person or organization named in the petition as an expected adverse party." Service must be made in the same manner as service of a summons, and

		everyone must be given at least 20 days' notice of the hearing. Here, after being instructed to do so by the court, Petitioner personally served the petition on the City of Huntington Beach because Petitioner is seeking records from the Huntington Beach Police Department. Petitioner then served notice of an alleged September 10, 2026 hearing, but Petitioner failed to reserve that date (as the court had instructed) and therefore the hearing was not calendared. The court then set today's hearing date, but Petitioner has failed to give notice of today's hearing to anyone. Furthermore, from the court's reading of Petitioner's filings, Petitioner improperly seeks prelawsuit discovery to ascertain the existence of a cause of action and/or the identity of those who may be made a party to a future lawsuit. Among other things, the petition also fails to set forth the present inability to bring an action, the facts that Petitioner desires to establish, the reasons for desiring to perpetuate or preserve these facts before an action has been filed, the name or a description of those whom the petitioner expects to be adverse parties so far as known, the address of those from whom the discovery is to be sought, and the substance of the information expected to be elicited from each of those from whom discovery is being sought. Any one of these shortcomings is enough to require denial of the petition, but collectively they compel it. The court further questions attorney Ho's authority to bring this petition. The petition alleges Petitioner has been cognitively unresponsive since the alleged collision. If so, how did he authorize attorney Ho to act on his behalf. It appears as though a conservator or some other appropriate legal representative will be necessary. Based on the foregoing, the petition is DENIED. Petitioner's counsel is ordered to give notice of this ruling.
14.	<i>Pinesett vs. Coral Motel</i> <i>2021-01179977</i>	At the time of the hearing, the court will expect an update regarding whether the federal court has made any ruling as to whether the matter should be remanded to this court. As previously mentioned, depending on what information the court receives at the time of the hearing, it may proceed with the order to show cause and determine whether the property at issue should be ordered sold to satisfy the judgment in this case.

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